PILOT AGREEMENT

for a sixty (60) day evaluation of the PayNest payroll platform

dated ____ March 2027

BETWEEN

ORBIT ANALYTICS PRIVATE LIMITED
(as the Client)

AND

PAYNEST TECHNOLOGIES PRIVATE LIMITED
(as the Service Provider)

Client Reference: ORB/LEGAL/PILOT/2027/03
Fictional sample agreement prepared for training and testing purposes only.

THIS PILOT AGREEMENT (this "Agreement") is made on the date set out on the cover page (the "Effective Date")

BETWEEN:

(1) ORBIT ANALYTICS PRIVATE LIMITED, a company incorporated under the Companies Act, 2013, having its registered office at Tower B, Panchshil Business Park, Viman Nagar, Pune 411014, Maharashtra, India (the "Client"); and

(2) PAYNEST TECHNOLOGIES PRIVATE LIMITED, a company incorporated under the Companies Act, 2013, having its registered office at Nest Towers, Outer Ring Road, Bellandur, Bengaluru 560103, Karnataka, India (the "Service Provider").

The Client and the Service Provider are each referred to as a "Party" and together as the "Parties".

WHEREAS:

(A) The Client is an information technology and data analytics company employing approximately one thousand two hundred (1,200) engineers and staff, and is evaluating payroll platforms before replacing its current payroll arrangements.

(B) The Client wishes to evaluate the Service Provider's payroll platform in a non-production pilot before deciding whether to enter into a full services agreement.

NOW, THEREFORE, the Parties agree as follows:

1. DEFINITIONS

1.1 "Confidential Information" means all information of a confidential nature disclosed by or on behalf of a Party, including the terms of this Agreement, pricing, platform architecture, security documentation, product roadmaps and evaluation results.

1.2 "Fees" means the pilot fee set out in Clause 5.1.

1.3 "Pilot" means the evaluation of the Platform described in Clause 3.

1.4 "Pilot Period" means the period of sixty (60) days from the Effective Date.

1.5 "Platform" means the Service Provider's payroll processing platform and employee self-service application, made available in a dedicated evaluation environment.

1.6 "Test Data" means the synthetic employee records, salary structures and attendance files created and supplied by the Client for the Pilot.

2. TERM

2.1 This Agreement shall commence on the Effective Date and shall continue for the Pilot Period, unless terminated earlier in accordance with Clause 10 or extended by written agreement of the Parties.

3. THE PILOT

3.1 During the Pilot Period, the Service Provider shall make the Platform available to up to twenty (20) named users of the Client for the purpose of running simulated payroll cycles, testing statutory computations and evaluating reports and employee self-service features.

3.2 During the Pilot, the Service Provider shall process only synthetic test data supplied by the Client; no real employee personal data shall be shared with or processed by the Service Provider.

3.3 The Client warrants that the Test Data does not contain the personal data of any real individual. If the Service Provider becomes aware that any file supplied by the Client contains real personal data, it may refuse to process that file and shall inform the Client.

3.4 The Pilot is a non-production evaluation. The Parties acknowledge that, because no Client personal data is processed and no live payroll is run, no service levels, service credits, data processing terms or rights of inspection apply to the Pilot. Any such terms will be agreed in a full services agreement if the Client proceeds.

4. SUPPORT

4.1 The Service Provider shall provide a pilot manager and reasonable e-mail support on working days during the Pilot Period, and shall hold a mid-pilot and a final review meeting with the Client.

5. FEES AND PAYMENT

5.1 The Client shall pay a fixed pilot fee of INR 2,00,000 (Rupees Two Lakhs), together with applicable goods and services tax.

5.2 The Service Provider shall invoice the pilot fee in advance on the Effective Date, and the invoice shall be payable within thirty (30) days of the invoice date.

5.3 Overdue amounts shall carry interest at the rate permitted by applicable law, and the Service Provider may suspend access to the Platform on written notice if any undisputed amount remains unpaid sixty (60) days after its due date.

6. CONFIDENTIALITY

6.1 Each Party shall keep the other Party's Confidential Information confidential, shall use it only for the purposes of the Pilot, and shall not disclose it to any third party other than its employees and professional advisers who need to know it and are bound by equivalent obligations of confidentiality.

6.2 Clause 6.1 shall not apply to information which is or becomes public other than through a breach of this Agreement, was independently developed, was lawfully received from a third party without restriction, or is required to be disclosed by law.

6.3 The obligations in this Clause 6 shall survive for three (3) years after termination or expiry of this Agreement.

7. INTELLECTUAL PROPERTY

7.1 All intellectual property rights in the Platform remain vested in the Service Provider. The Client receives a limited, non-transferable right to use the Platform during the Pilot Period for evaluation purposes only.

7.2 The Client may provide feedback on the Platform, which the Service Provider may use to improve its products without obligation to the Client.

8. INDEMNITY

8.1 The Service Provider shall indemnify the Client against third-party claims alleging that the Client's use of the Platform in accordance with this Agreement infringes the intellectual property rights of that third party, up to twice the Fees paid under this Agreement.

8.2 The Client shall notify the Service Provider promptly of any such claim and allow the Service Provider to control its defence.

9. LIMITATION OF LIABILITY

9.1 Each Party's aggregate liability arising out of or in connection with this Agreement shall not exceed the Fees paid or payable in the twelve (12) months preceding the event giving rise to the claim.

9.2 Neither Party shall be liable for any indirect, special or consequential loss, or for any loss of profit, revenue, goodwill or anticipated savings.

9.3 Nothing in this Agreement limits either Party's liability for fraud, wilful misconduct, or death or personal injury caused by negligence.

10. TERMINATION

10.1 Either Party may terminate the Pilot on thirty (30) days' written notice to the other Party.

10.2 Either Party may terminate this Agreement for material breach by the other Party which is not remedied within thirty (30) days of written notice.

10.3 The pilot fee is not refundable once the Platform has been made available to the Client.

11. GOVERNING LAW AND DISPUTES

11.1 This Agreement shall be governed by the laws of India.

11.2 Any dispute arising out of or in connection with this Agreement shall be referred to arbitration under the Arbitration and Conciliation Act, 1996, seated in Bengaluru, before a sole arbitrator, and conducted in English.

12. GENERAL

12.1 This Agreement constitutes the entire agreement between the Parties relating to the Pilot. It does not oblige either Party to enter into any further agreement.

12.2 No amendment shall be effective unless made in writing and signed by both Parties.

IN WITNESS WHEREOF the Parties have caused this Agreement to be executed by their duly authorised representatives on the date set out on the cover page.

For and on behalf of	For and on behalf of
ORBIT ANALYTICS PRIVATE LIMITED	**PAYNEST TECHNOLOGIES PRIVATE LIMITED**

Signature: _____	Signature: _____
Name: _____	Name: _____
Designation: Director, People Operations	Designation: General Counsel
Date: _____	Date: _____